



SENATE JOINT RESOLUTION No. 11

DIGEST OF INTRODUCED RESOLUTION

Citations Affected: Article 4 of the Constitution of the State of Indiana

Synopsis: Ballot initiative and referendum. Provides that the people of Indiana may propose and adopt amendments to the Constitution of the State of Indiana through an initiative. Provides that the people of Indiana may approve or reject any statute or part of any statute enacted by the general assembly through a referendum. This proposed amendment has not been previously agreed to by a general assembly.

Effective: This proposed amendment must be agreed to by two consecutive general assemblies and ratified by a majority of the state's voters voting on the question to be effective.

Taylor G

December 8, 2025, read first time and referred to Committee on Judiciary.



PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE JOINT RESOLUTION No. 11

A JOINT RESOLUTION proposing an amendment to Article 4 of the Constitution of the State of Indiana concerning elections.

Be it resolved by the General Assembly of the State of Indiana:

- 1 SECTION 1. The following amendment to the Constitution of the
2 State of Indiana is proposed and agreed to by this, the One Hundred
3 Twenty-fourth General Assembly of the State of Indiana, and is
4 referred to the next General Assembly for reconsideration and
5 agreement.
- 6 SECTION 2. ARTICLE 4, SECTION 1 OF THE CONSTITUTION
7 OF THE STATE OF INDIANA IS AMENDED TO READ AS
8 FOLLOWS: Section 1. **(a) Except as otherwise provided in this**
9 **Constitution**, the Legislative authority of the State shall be vested in
10 a General Assembly, which shall consist of a Senate and a House of
11 Representatives. ~~The style of every law shall be: "Be it enacted by the~~
12 ~~General Assembly of the State of Indiana"; and no law shall be enacted,~~
13 **except by bill.**



(b) The people reserve to themselves the power, independent of the General Assembly, to do the following:

(1) Propose statutes and amendments to the Constitution of the State of Indiana.

(2) Adopt or reject their proposed statutes or amendments to the Constitution of the State of Indiana by ballot.

(3) Approve or reject by ballot any statute, or section or part of any statute, enacted by the General Assembly.

(c) The style of every statute enacted by the people shall be: "Be it enacted by the People of the State of Indiana:". The style of every statute enacted by the General Assembly shall be: "Be it enacted by the People of the State of Indiana, through the General Assembly:".

SECTION 3. ARTICLE 4 OF THE CONSTITUTION OF THE STATE OF INDIANA IS AMENDED BY ADDING A NEW SECTION TO READ AS FOLLOWS: Section 31. (a) As used in this section, "initiative" means the power of the voters of Indiana to approve or reject an amendment to the Constitution of the State of Indiana.

(b) An initiative shall be submitted to the voters of Indiana if a petition containing the text of the proposed initiative is approved by the number of Indiana voters equal to five percent (5%) of the total number of votes cast for Secretary of State at the most recent election for Secretary of State.

SECTION 4. ARTICLE 4 OF THE CONSTITUTION OF THE STATE OF INDIANA IS AMENDED BY ADDING A NEW SECTION TO READ AS FOLLOWS: Section 32. (a) As used in this section, "referendum" means the power of the voters of Indiana to approve or reject:

(1) a statute;

(2) a part of a statute; or

(3) parts of statutes;

enacted by the General Assembly.

(b) A referendum shall be submitted as a public question to the voters of Indiana if a petition identifying the statute or part of the statute enacted by the General Assembly to be approved or rejected is signed by the number of Indiana voters equal to five percent (5%) of the total number of votes cast for Secretary of State at the most recent election for Secretary of State.

SECTION 5. ARTICLE 4 OF THE CONSTITUTION OF THE STATE OF INDIANA IS AMENDED BY ADDING A NEW SECTION TO READ AS FOLLOWS: Section 33. (a) As used in this



1 section, "initiative" means the power of the voters of Indiana to
 2 approve or reject an amendment to the Constitution of the State of
 3 Indiana.

4 (b) As used in this section, "referendum" means the power of
 5 the voters of Indiana to approve or reject:

- 6 (1) a statute;
- 7 (2) a part of a statute; or
- 8 (3) parts of statutes;

9 enacted by the General Assembly.

10 (c) If an initiative or a referendum is approved by a majority of
 11 the votes cast on the initiative or referendum, the initiative or
 12 referendum takes effect, subject to subsection (d), five days after
 13 the date the results of the public question are certified as provided
 14 by law, unless the initiative or referendum provides otherwise.

15 (d) If an initiative requires, either implicitly or explicitly, that
 16 a government entity spend money to carry out the initiative, the
 17 statute or amended statute does not take effect until the initiative
 18 or another statute provides a source of funding to the government
 19 entities required to carry out the initiative.

20 (e) If a referendum petition is filed against part of a statute, the
 21 remainder of the statute is not delayed from taking effect.

22 (f) If provisions of two or more initiatives or referenda
 23 approved at the same election conflict, the provisions of the
 24 initiative or referendum receiving the highest affirmative vote
 25 prevails.

26 (g) The General Assembly may amend or repeal a statute
 27 created or amended by a referendum.

28 (h) The veto power of the governor does not extend to an
 29 initiative or a referendum statute approved by the voters.

30 SECTION 6. ARTICLE 4 OF THE CONSTITUTION OF THE
 31 STATE OF INDIANA IS AMENDED BY ADDING A NEW
 32 SECTION TO READ AS FOLLOWS: Section 34. The General
 33 Assembly shall provide by law for the exercise of initiative and
 34 referendum powers by the voters of each unit of local government.

